Oregon Department of Human Services

Licensed Child Caring Agency Unannounced Site Visit Report
Residential Care

Licensee: Native American Rehabilitation Association of the Northwest, Inc (NARA)
Executive Director: Jacqueline Mercer
Program Director(s): Lucy LaDue
Date of Unannounced: December 3, 2024
Licensing Coordinator: Robin DuVal

Other Regulatory or Accrediting Agencies: Oregon Health Authority (OHA)

Purpose: Per OAR 419-400-0240 (1)(b) Children's Care Licensing is required to perform at least one unannounced site visit a year where children in care reside.

Previous Findings **License Renewal Site Visit 01/29-30/2024**	**Repeat Findings Further Action Needed**	**Comments**
Installation and Use of Video Equipment Used to Monitor or Record Children in Care 419-400-0145(1)If a child-caring agency installs video equipment to monitor or record a child in care, all employees, volunteers, parents or guardians, and children in care must be informed about the intended use and locations of the equipment. The agency will submit their policy and procedure for review, as well as the method of informing those noted in this rule about the intended use and locations of the equipment.	**Yes☐ No✓**	This policy and procedure has been updated and meets licensing requirements.
Supplemental Information Provided by CCA All required policies and procedures as identified in the "Umbrella Rules" Upon review of the following policies and procedures, there are minor to moderate edits needed. **Corrective Action:** The agency shall update the following policies and procedures pursuant to each OAR and submit for review. • Conflict of Interest per OAR 419-400-0070 • Rights of Children and Families per OAR 419-400-0090(2) • Grievance Procedures per OAR 419-400-0090(2) • Mandatory Abuse Reporting per OAR 419-400-0110(2)(a) • Privacy per OAR 419-400-0130 • Behavior Management per OAR 419-400-0150	**Yes☐ No✓**	These policies and procedures have been updated and meet licensing requirements.

• Searches per OAR 419-400-0200(2) If applicable, submit a written policy for compliance with Interstate Compact on the Placement of Children (ICPC).		
Supplemental Information Provided by CCA All required policies and procedures as identified in "Agency Type Specific Rules" The agency shall update the following policy and procedure pursuant to the OAR and submit for review: Medications in OAR 419-470-0110	**Yes☐ No✓**	This policy and procedure has been updated and meets licensing requirements.
Residential Care Safety 419-470-0080(2)Written emergency plan that includes: (a) Identifying the types of emergencies most likely to happen where the residential care agency is located (b) Identifying a place to meet for each type of emergency identified (c) Identifying an alternate shelter if necessary (d) Ensuring access to necessary medications or medical equipment (e) How to help each child in care recover after a disaster • Requirement (b), (d), (e) are unmet. **Corrective Action**: The agency shall update the emergency plan(s) and submit for review.	**Yes☐ No✓**	The plan has been updated and meets licensing requirements.
Residential Care Safety 419-470-0080 (5)(a) Evacuation drill occurs monthly under varying conditions, is retained 2 years and contains: (A) identify of person conducting drill (B) date & time (C) notification method (D) staff participating (E) # of children & staff evacuated (F) special conditions simulated (G) problems encountered (H) time to complete A review of records for the last 24 months identified three months without documented drills. Requirement (F) "special conditions simulated" was not consistently documented. This licensor recommended updating the form to include this requirement. **Corrective Action:** The agency shall ensure evacuation drills occur monthly; and ensure the updated form is utilized to ensure all requirements are documented appropriately.	**Yes✓ No☐**	Documentation confirm fire drills are occurring monthly. The agency is utilizing the updated form, however "special conditions simulated" are documented as "none at this time". **Corrective Action:** The agency shall ensure a special condition is simulated for each drill and simulations are different from month-to-month. **(REPEAT FINDING)**

Medication 419-470-0100(8) Medications are disposed in accordance with state and federal law. Unopened unused prescribed medications must also be appropriately disposed of and cannot be used for other children in care, or any other purpose. Documentation and the practice of the method was unclear. **Corrective Action**: the agency shall ensure proper disposal requirements are met and staff are clear on the procedure. While on-site, this was discussed, and the agency swiftly addressed this.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Medication 419-470-0100(9) Written record of the disposal of medications is maintained and includes: (a) description and amount (b) name (c) reason (d) method (e) staff & witness signature The document entry for "method" noted "return to stock" (RTS). Upon discussion, it was unclear whether RTS meant return to pharmacy stock or return to NARA stock. Unopened unused prescribed medications must be disposed of and cannot be used for other children in care. **Corrective Action**: the agency shall ensure proper disposal requirements are met and staff are clear on the procedure. While on-site, this was discussed, and the agency swiftly addressed this.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
New Employee Orientation – Umbrella Requirements (30 days) 419-400-0120(4)(c) Suicide prevention and intervention This training did not occur within 30 days of hire for one employee. **Corrective Action**: The agency shall ensure all employees receive this training within 30 days of hire.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
New Employee Orientation – Umbrella Requirements (30 days) 419-400-0120(4)(e) & (5)(a) to (c) Mandatory reporting that includes: (a) legal definition of child abuse in ORS 418.257 and 419B.005 (b) legal responsibility to immediately report (c) legal responsibility to report is personal to the employee This training did not occur within 30 days of hire for one employee. **Corrective Action**: The agency shall ensure all employees receive this training within 30 days of hire.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*

New Employee Orientation - Residential (Prior to working alone and within 30 days) 419-470-0120(1)(e) Training on the agency's policy on suicide prevention and suicide risk assessment tool This training did not occur within 30 days of hire for one employee. **Corrective Action**: The agency shall ensure all employees receive this training within 30 days of hire.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Disclosures 419-470-0160(2) Parent/guardian has acknowledged in writing: (b) Statement of Rights of Children and Parents/Guardians There were two versions of the Statement of Rights in child files that did not meet requirement in its entirety. **Corrective Action**: The agency shall ensure the form is updated pursuant to the OAR required statements of rights and ensure the use of the updated form going forward. It was recommended to add the revised date to the footer of the form.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Information about Children in Care 419-400-0190(1) Summary sheet contains the following: (a)The name, gender, date of birth, religious preference, and previous address. Religious preference and gender were not consistently documented on the summary sheet. This is a repeat violation. **Corrective Action**: The agency shall ensure an entry is noted for each.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Service Planning 419-470-0170(2) (e) (A)&(B) Service plan within 60 days (parent, guardian and child actively involved). Describes how child's issues will be addressed, anticipated outcomes, and reviewed by child and guardian/parent. Documentation was unclear demonstrating that a parent/guardian was actively involved in service planning and that the service plan was reviewed by the parent/guardian. **Corrective Action**: the agency shall ensure the documentation appropriately captures involvement of the parent/guardian. If there is not involvement, the agency shall document the reason.	**Yes✓ No☐**	This requirement remains unmet. **Corrective Action**: The agency shall ensure this requirement is met. Comment: While on-site, the agency identified possible changes to their electronic system to ensure this is met and consistently met. **(REPEAT FINDING)**

Case Management 419-470-0170(3)(c) Discharge summary must include: (A)Current medications (B)Name of the physician or qualified medical professional who prescribed each medication (C)Any outstanding medical or other appointments (D)Summary of the child's participation in the program and progress achieved (E)Results of evaluations (F)Recommendations regarding services (G)Discharge destination Discharge summaries were missing requirements A, B, C, G. **Corrective Action**: the agency shall ensure discharge summaries include all requirements outlined in this rule.	**Yes✓ No☐**	Records were reviewed, and requirement (C) is met; however, requirements A, B, and G. **Corrective Action:** The agency shall ensure discharge summaries include all requirements outlined in this rule. Comment: While on-site, the agency identified possible changes to forms to ensure this is consistently met. **(REPEAT FINDING)**
Records Relating to Restraint & Involuntary Seclusion 419-400-0180(13)(e) Each child caring agency shall provide notice regarding how to access the quarterly reports to the parents or guardians of children in care in the program. The child caring agency shall provide the notice upon the child in care's admission and at least two times each year thereafter. This requirement is unmet. This licensor will provide some examples for the agency to implement.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*
Records Relating to Restraint & Involuntary Seclusion 419-400-0190(1) Information provided to children in care relating to Restraint & Involuntary Seclusion This requirement is unmet. This licensor will provide some examples for the agency to implement.	**Yes☐ No✓**	Records were reviewed, and this requirement was met. *There's no further corrective action needed at this time.*

New Findings from Site Visit	Comments
None	

Interview Summary
Upon arrival, neither of the program managers were on-site, although the two supervisors covering were welcoming, accommodating and professional. Two youth were individually interviewed, ages 16 and 13, with approximate stays of 2 months and 1 month, respectfully. Both report feeling safe and described ways the program is helping them. The food is good and plentiful. Staff are trusting, they get medications as ordered, and peer relationships are going ok. Activities within the program and outings were described, and both expressed how they like that part of this program compared to other programs. Youth are involved in their treatment plans, and they feel listened to. They report that program staff really care about the youth and that the program pays attention to their individual needs as well as providing for their basic needs. Peer group circles and talking through problems is helpful. Communication with approved outside people occurs several times a week, and they are provided privacy while communicating with approved people. When asked what the agency could improve on, neither could think of anything.

Observations
The environment is welcoming, in good condition and clean. The milieus are spacious with comfortable couches and video gaming machines as well as mounted TVs. All bedrooms, bathrooms, and shower rooms were observed, including the ADA room and bathroom. Other areas observed were the staff area, medication room, and group rooms.

Corrective Actions and Timeframes: Please submit the following to verify compliance.

Within 45 days of receipt of this report **Native American Rehabilitation Association of the Northwest, Inc. (NARA)** must submit a letter of verification indicating the agency is in compliance with the specific rules cited above and describing how compliance will be maintained going forward. Along with the letter of verification, the agency must submit any and all specific documentation requested in the body of this report. The letter of verification and any additional requested documents can be emailed directly to **Robin DuVal at robin.m.duval@odhsoha.oregon.gov.**

Licensing Coordinator's Signature: Robin DuVal Date: 12/16/2024

Manager Review: _____ Date: 12-12-2024